CITY OF OPA-LOCKA

"The Great City"

Clerk's Action Summary Minutes
Regular Commission Meeting
January 28, 2009
7:00 p.m.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:01 p.m. on Wednesday, January 28, 2009 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Rose Tydus, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes, Commissioner Dorothy Johnson and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

Clerk Irby advised of the request to amend the agenda to include the following resolutions under new items (agenda item 12):

12-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO SETTLE PENDING LAWSUIT BROUGHT BY FORMER POLICE CHIEF JAMES WRIGHT AND FURTHER PERMIT THE CITY MANAGER TO ISSUE A FORM 1099 IN CONNECTION WITH PAYMENT AND IN EXCHANGE FOR A RELEASE AGREEMENT PROVIDING FOR INDEMNIFICATION TO CITY. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Commissioner Tydus to amend the agenda to include the above resolution as item 12-1.

There being no discussion, the motion passed by a 4-1 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	No
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

12-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AMENDMENT TWO TO THE FISCAL YEAR 2007 COMMUNITY DEVELOPMENT BLOCK GRANT (CDBG) AGREEMENT BETWEEN MIAMI-DADE COUNTY AND THE CITY OF OPA-LOCKA. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the agenda to include the above resolution as item 12-2.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

6. APPROVAL OF CONSENT AGENDA AND PULL LIST:

Manager Finnie deferred items 15-6 and 15-7 from the Consent Agenda; Commissioner Johnson deferred 14A1 (first reading ordinance) and 15-1 from the Consent Agenda.

Commissioner Johnson pulled 15-2 from the Consent Agenda.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGMENTS:

8. APPROVAL OF MINUTES:

Regular Commission Meeting – January 14, 2009

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the minutes of the Regular Commission Meeting of January 14, 2009.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

9. DISTRICT ONE – COUNTY COMMISSIONER REPORT:

Mark Brown, Assistant to Commissioner Barbara Jordan, District 1 County Commissioner, came forward and briefly discussed the Annual Valentine's Day Hop for Seniors on Friday, February 13, 2009 at the Landmark Auditorium from 5:00 p.m. to 8:00 p.m. Additionally, he provided a brief update on the beautification and rehab projects.

Commissioner Johnson expressed her concerns relating to the overgrown palm trees and drainage on NW 32nd Avenue and requested that Mr. Brown provide the Interim City Manager with the contact names and numbers previously provided to the former City Manager.

She further requested that Mr. Brown highlight the Mom & Pop grant program.

Mr. Brown advised that the annual Mom & Pop grant program is a for profit grant for businesses that can receive up to $5,000.00.

Vice Mayor Taylor expressed her concerns relating to the repairing of streets and roads and asked whether that was a collaboration effort between the city and the county.

Manager Finnie advised that it could be city, county or state; it's just a collaboration effort through the county commissioner's office as far as who's the right person to contact and then he will proceed.

Vice Mayor Taylor asked, who's in charge of putting the lines in the street?

Manager Finnie advised that the city would be in charge of its streets and the state and county would be in charge of their roads.

10. PUBLIC PRESENTATION:

10a. CITIZENS FORUM:

Robert Stirrup, 751 Curtiss Drive, Opa-locka, FL 33054
Julmiste Mayhue, 730 Curtiss Drive, Opa-locka, FL 33054
Sharon Wimberly, 740 Curtiss Drive, Opa-locka, FL 33054
Enrique Loran, 760 Curtiss Drive, Opa-locka, FL 33054
Ivy Cromer, 920 Curtiss Drive, Opa-locka, FL 33054

The above residents appeared before the City Commission to express their frustration with the lack of parking on Curtiss Drive and the issuance of parking citations for parking on the sidewalk and/or other areas on that street.

Commissioner Holmes suggested that the City Commission approve a resolution to cease the issuance of parking citations on Curtiss Drive until the issue with parking is resolved.

Mayor Kelley preferred to have the City Manager provide the Commission with a recommendation, take the appropriate steps and address the concerns of citizens.

Manager Finnie stated that he would provide a report at the February 11, 2009 commission meeting on this matter and he would speak with the Chief of Police on that issue.

Additionally, Mrs. Wimberly stated that the grass is not being maintained on Curtiss Drive.

Vice Mayor Taylor suggested that the city suspend the ticketing until the issue with the parking is resolved.

Manager Finnie stated that he would look at a moratorium on certain activities outside of the Zoning Code.

Irma Skiles of 14261 NW Irma Skiles Court, Opa-locka, Florida appeared before the City Commission and stated that she was happy to know that this administration is boldly in the process of reclaiming the most populous and essential facility this city has ever possessed which is the Opa-locka Executive Airport.

Chief Dan Gonzalez of the Miami-Dade Fire Rescue came forward to address any concerns.

At the previous meeting, Mayor Kelley stated that the Chief said he would have a fire truck at the MLK walk and he was disappointed to find out that there wasn't any participation from the Fire Department.

Chief Gonzalez apologized for overlooking the MLK walk this year and suggested that the Commission feel free to make the request in the future.

On behalf of the Fire Department, Commissioner Holmes said he believes there was a misunderstanding with the MLK Walk and the MLK Parade.

11. ACTION ITEMS:

15-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO MAKE PAYMENT TO FORMER CITY MANAGER JANNIE R. BEVERLY IN THE NET AMOUNT OF SEVENTY-EIGHT THOUSAND FOUR HUNDRED AND TWO DOLLARS AND EIGHT CENTS ($78,402.08) AS SET FORTH IN EXHIBIT "A", PAYABLE FROM ACCOUNT NUMBER 12-512110; FURTHER AUTHORIZING PAYMENT OF THIRTEEN THOUSAND SEVEN HUNDRED TWENTY-FOUR DOLLARS ANS SIX CENTS ($13,724.06) ON BEHALF OF JANNIE R. BEVERLY, TO THE STATE FRS AND THIRD PARTY PROVIDER FOR RETIREMENT AND DEFERRED COMPENSATION BENEFITS, PAYABLE FROM ACCOUNT NUMBER 12-512220; AND AUTHORIZING PAYMENT OF THIRTEEN THOUSAND SEVEN HUNDRED TWENTY DOLLARS ($13,720.20) ON BEHALF OF JANNIE R. BEVERLY, TO THIRD PARTY PROVIDERS FOR INSURANCE BENEFITS, PAYABLE FROM ACCOUNT NUMBER 12-512230. *Sponsored by T.H.*

The above resolution was read by title by Attorney Norris-Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson asked, has the former City Manager received sick leave and annual leave?

Sharlene Boyd, Director of Human Resources for the City of Opa-locka advised that the former City Manager has received all payments due to her for sick leave and annual leave.

Commissioner Johnson stated that it was her understanding that compensatory time was not a part of the annual and sick leave at $31.00 per hour times 7,488 which would equal up to $232,128.00. She asked, is this accurate?

Mrs. Boyd replied, yes.

In looking at the compensatory time the former City Manager would have received versus the amount in the resolution, Commissioner Johnson said there is a very substantial difference in the amounts.

Upon hearing the comments from Commissioner Johnson regarding compensatory time and reviewing the contract for the former City Manager, Commissioner Tydus stated that benefits do not include compensatory time and she could not ignore and totally disregard the conditions of the contract of which Mrs. Beverly was fully aware of. She continued by reading into the record the following provisions of the contract: *Section 3 (A), (B), (C) and (D).* Obviously, these provisions in the contract were not considered in deliberations. Also page 7, Section 22 (F) states that *"this agreement shall not be amended, modified, altered or changed in any way without the written consent of all parties thereto".*

She further stated that she, in good conscious, cannot totally disregard the conditions of this agreement setting precedence and setting the city up for possible litigation as experienced in the past with regards to terminations and/or resignation of contracted employees.

Commissioner Johnson asked for a legal opinion from the City Attorney as it relates to the contract for former City Manager Jannie R. Beverly.

Attorney Norris-Weeks advised that the Commission has the option whether they want to pay outside of the contract or not; however, should they decide to abide by the contract there isn't a provision that would require that they pay in the amounts in the resolution as brought forth. Should the Commission decide to pay Mrs. Beverly irrespective of the contract; they can do that as a policy decision.

Commissioner Johnson questioned the City Attorney as far as liability relating to this resolution.

Attorney Norris-Weeks stated that she didn't know of any liability necessarily; Mrs. Beverly is an appointed official of the city, she's in a unique position; therefore, she doesn't know that it presents any undue liability and it's purely a policy decision for the Commission.

Mayor Kelley expressed his concerns with regards to the above matter and stated that the contract clearly doesn't call for the former City Manager to get any funds; but if it is up to the majority of the Commission to give her, just out of the love of their heart, a year salary then that's fine because there's nothing in the contract that says she's entitled to a whole year. As much as he liked the former City Manager and was supportive of her and yes if she would have been terminated with or without cause she possibly could have received more; but they don't know that because it didn't occur.

He continued by saying that this resolution calls for close to $100,000.00 out of the general fund and the city already has a City Manager. He pointed to the fact that when this Commission, in his absence, appointed the current Interim City Manager, they did not follow and still have not followed the process according to the existing code. He suggested that if the Commission wants to give the former City Manager $100,000.00, that they can do; but that they don't tie in any numbers and compensation because clearly

there's nothing in the contract that entitles her to $100,000.00 walking away. In essence, the city will pay for two City Managers in the current fiscal year for one position.

He further stated that in his opinion this resolution sets a bad precedence for the future but it is up to the will of the Commission.

On behalf of former City Manager Beverly, Commissioner Holmes reiterated her accomplishments, hard work and dedication to the city over the years and expressed his support of the above resolution.

In dealing with contract employees, Commissioner Johnson asked, what precedence has that ever set?

Typically, Mrs. Boyd stated that contracts are followed for the most part; however, when the Commission is involved, they have the right to decide how they want to carry out the contract.

Commissioner Johnson asked whether Mrs. Boyd had dealt with compensatory time or personal leave that equals to money.

Mrs. Boyd stated that at the level the City Manager is at, compensatory time is something that's typically not tracked.

Commissioner Johnson asked the City Attorney for her professional opinion as to what legal precedence the Commission would be setting by passing this resolution?

From a legal standpoint, Attorney Norris-Weeks stated that it was not setting any legal precedence. The appointed officials are unique from other employees and the Commission can look at these on a case by case basis as the issues come up.

According to Attorney Norris-Weeks, Mayor Kelley stated that from a legal precedence the Commission can legally give out money to anybody they want to because it becomes a policy decision; but in his opinion it is not a good decision.

There being no further discussion, the motion passed by a 3-2 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	No
Vice Mayor Taylor	Yes
Mayor Kelley	No

12. NEW ITEMS:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO SETTLE PENDING

LAWSUIT BROUGHT BY FORMER POLICE CHIEF JAMES WRIGHT AND FURTHER PERMIT THE CITY MANAGER TO ISSUE A FORM 1099 IN CONNECTION WITH PAYMENT AND IN EXCHANGE FOR A RELEASE AGREEMENT PROVIDING FOR INDEMNIFICATION TO CITY. *Sponsored by C.M.*

The above resolution was read by title by Attorney Norris-Weeks.

It was moved by Commissioner Johnson, (Mayor Kelley passed the gavel to Vice Mayor Taylor) seconded by Mayor Kelley to pass the above resolution.

Commissioner Johnson asked, how could the city give a form 1099 to an employee who was not providing professional services?

Attorney Norris-Weeks advised that it happens frequently; in fact its happened in other city cases. She said she has researched it, it isn't illegal and the fact that he's filed a lawsuit, he is no longer an employee. This doesn't present any legal issues for which she has issues for and she is further going beyond that by protecting the city with a very extensive indemnification clause for release from any and all liability. Under the circumstances, the former police chief is owed under the contract and it would be in the best interest of the city to resolve this issue. The Commission has already approved to pay him and the only issue here is the issue of the 1099.

She continued by recommending that the Commission adopt the resolution.

Manager Finnie concurred with the City Attorney's assessment of the situation.

For the record, Commissioner Holmes stated that he didn't know why this resolution was brought forth. On October 8, 2008, the City Commission adopted Resolution No. 08-7361 to pay James Wright over $140,000.00 and he hasn't heard anything about that resolution being rescinded. Should this resolution pass, he said he would send a copy of the above resolution and Resolution No. 08-7361 to the State Attorney's Office.

Commissioner Johnson asked, about how much money was paid out to Mr. Wright?

Manager Finnie advised that no monies were disbursed in the city but checks had been written.

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that no money was paid out.

Commissioner Holmes asked, did the city draft checks in October upon approval of Resolution No. 08-7361?

Dr. Orji advised that the checks were drafted but they were never picked up.

When Resolution No. 08-7361 passed back in October 2008, Commissioner Holmes said it was stated in the minutes that there would be no other money owed; therefore, it is wrong to sit there and say that no monies were issued because the city did issue the checks, and if Mr. Wright didn't pick those checks up, then that's not the city's problem.

At the meeting, Attorney Norris-Weeks stated that the Commission may recall that they were trying to resolve the issue and there wasn't a meeting of the minds. When you have a meeting of the minds that's when there's a contractual agreement. Just because the city takes it upon itself to say here we are going to pass this resolution doesn't mean there's an agreement and that is why the lawsuit was filed.

She recommended that the Commission allow a shade meeting to hear some of the issues, know what the litigation involves. She along with the City Manager met with Mr. Wright's attorney to resolve the issue. She further stated that they researched the matter, they are comfortable with the language of indemnification and there are no legal issues she sees that will be presented by passing this resolution.

On October 8, 2008, Commissioner Holmes stated that the City Attorney informed the Commission that there would be no other monies paid. The lawsuit came after the resolution for payment was passed in October 2008; therefore, it doesn't have any binding to it.

Since the checks haven't been picked up, Commissioner Johnson made the assumption that the money was still in the city's account.

Manager Finnie replied, yes.

Commissioner Johnson asked, would the amount remain the same because she is hearing the same figure and she doesn't want to put it out there that the city is paying double.

Attorney Norris-Weeks advised that the amount is the exact same figure; in other words, the city is not paying any additional amount.

Commissioner Johnson asked about the length of time the checks are valid for.

Manager Finnie stated that the standard for a check is any where from 60 to 90 days.

Commissioner Johnson stated that the check is no good and the city would have to re-issue a new check anyway. She further stated that she didn't understand why the city would have to bring this issue back again.

Attorney Norris-Weeks stated that it is back for the 1099 issue.

As it relates to the Form 1099, Commissioner Holmes stated that the city is not taking any taxes out and with the first resolution the city did take taxes out.

Attorney Norris-Weeks stated that the Form 1099 would allow the individual to be responsible for the taxes.

In dealing with these types of issues in the future, Mayor Kelley directed that the City Attorney meet with the Commission individually so that when these types of issues come up, it is clear. The Commission has spent too much time on this dialogue.

Vice Mayor Taylor asked questions to get further clarification on this issue.

In October, the same amount was agreed upon; however, Attorney Norris-Weeks stated that they wanted the 1099 issued then and the Commission passed the resolution when the attorney was going in and out trying to talk to his client. While the attorney was outside, the Commission passed the resolution and when he got back in he found out that it had passed but then his client didn't agree with that. Now, the Commission is back trying to agree understanding the whole picture and all of the issues that are out there.

Vice Mayor Taylor asked, if an agreement wasn't reach then why would the city come up with a resolution in the first place?

Commissioner Johnson stated that she was the one who brought the issue up thinking that an employee who received pay from the city should have taxes taken out, and the city would be responsible for the taxes; that is the reason she is challenged with the 1099. The 1099 is so that the party would be responsible for paying the taxes and not the city; but during that meeting in October by the time the party came back in the Chambers the Commission had already voted and moved to another subject.

Vice Mayor Taylor expressed her concerns about this issue already being settled on October 8, 2008 and said she didn't see how the city could come back again with another resolution. She inquired as to why the resolution from October 8, 2008 wasn't being followed. Now the individual is coming back saying he doesn't want what was in the October 8, 2008 resolution because he wants a lump sum of money along with a 1099 in exchange for a settlement when a release settlement agreement should have been done at the time of the October 8, 2008 resolution. The city is now coming back saying that the resolution needs to be undone. She said she is uncomfortable with that because that makes the October 8, 2008 resolution have no effect; the Commission would have to rescind that resolution and start over because they can't have two resolutions on the same item.

The only reason the previous resolution wasn't rescinded, Attorney Norris-Weeks stated was because she didn't think it was inconsistent. The city awarded the amount and the only issue is the 1099 and the amount is the same.

Vice Mayor Taylor stated that the 1099 is important because in the resolution the 1099 is in exchange for something.

Mayor Kelley suggested that a Shade Meeting is held so that the Commission concerns are addressed relating to this issue.

The motion and second were withdrawn to allow for a Shade Meeting prior to the resolution coming back before the Commission.

Vice Mayor Taylor directed the City Attorney to rescind the October 8, 2008 resolution and come back with one resolution that the Commission can vote on.

With the Shade Meeting Attorney Norris-Weeks advised that she would have to announce it in that meeting. She asked, would the Commission like to conduct the Shade Meeting an hour prior to the next regular commission meeting?

Vice Mayor Taylor said she didn't have to talk to anyone just as long as when the resolution comes back that it is clear and the previous resolution is rescinded.

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AMENDMENT TWO TO THE FISCAL YEAR 2007 COMMUNITY DEVELOPMENT BLOCK GRANT (CDBG) AGREEMENT BETWEEN MIAMI-DADE COUNTY AND THE CITY OF OPA-LOCKA. *Sponsored by C.M.*

The above resolution was read by title by Attorney Norris-Weeks.

It was moved by Vice Mayor Taylor, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson asked, why is the city dealing with something dated 2007?

Manager Finnie explained that the contract officer from Community and Economic Development brought those contracts to the city; there are approximately five contracts the city agreed to merge into one large contract and get approved by this board to keep the money alive through the next fiscal year. He advised that if this resolution is not approved then the contracts will lapse on January 30, 2009 and those dollars will no longer be the assets of the City of Opa-locka.

He further stated the grants were for five different projects which the city didn't have enough money for.

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and explained that every grant is time specific; the projects that the grants pertain to the city has been unable to get enough money to carry out a particular one. By pulling these pockets of money together and extending the time that would allow management for one or two good projects.

Manager Finnie advised that with this action he believes the city would have enough money to start the Sherbondy Park project in 2009.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; REPEALING ORDINANCE 07-03, CODIFIED AS CHAPTER 7, ARTICLE I, SECTION 7-12 OF THE OPA-LOCKA CODE OF ORDINANCES ENTITLED "APARTMENT BUILDINGS WITH TWENTY FOUR UNITS OR MORE"; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.

The above ordinance was deferred.

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE DUAL DESIGNATION OF SINBAD AVENUE FROM NW 135TH STREET TO OPA-LOCKA BOULEVARD AS "OFFICER EPHRIAM BROWN AVENUE"; PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on January 14, 2009).

The above ordinance was read by title by Attorney Norris-Weeks.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance.

Attorney Norris-Weeks advised that the Commission would have to enter into discussion about the significance of the person and whether there are any debts owed to the city to conform to the recently adopted ordinance regarding street naming.

Commissioner Holmes stated that Officer Brown was killed in the line of duty; therefore, there is no debt owed by Officer Brown.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

C. RESOLUTIONS:

15. ADMINISTRATION:

CONSENT AGENDA:

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING PAYMENT OF EIGHT THOUSAND TWO HUNDRED AND FIFTY DOLLARS ($8,250.00) TO MILAGROS FARM NURSERY FOR THE PLANTING OF TREES AS PART OF THE CITY OF OPA-LOCKA TREE PLANTING AND BEAUTIFICATION PROJECT, PAYABLE FROM ACCOUNT NO. 41-541340. *Sponsored by C.M.*

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO MAKE PAYMENT TO SUNBELT RENTALS, INC. FOR WATER TRUCK RENTAL IN THE AMOUNT OF EIGHT THOUSAND SIX HUNDRED EIGHTY-EIGHT DOLLARS AND EIGHTY –NINE CENTS ($8,688.89) FOR THE WATERING OF TREES AS A PART OF THE CITY'S ONGOING BEAUTIFICATION PROJECT, PAYABLE FROM ACCOUNT NO. 41-541520. *Sponsored by C.M.*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RESCINDING RESOLUTION 08-7330 AUTHORIZING THE CITY MANAGER TO ISSUE A REQUEST FOR PROPOSALS (RFP) FOR SUPPLYING PAYROLL, HUMAN RESOURCE INFORMATION SYSTEMS (HRIS) AND TIMEKEEPING AUTOMATION TO THE HUMAN RESOURCES DEPARTMENT; PIGGYBACKING RFP BID AWARD #04-08-01 FROM THE CITY OF MIRAMAR FOR ADP AND AUTHORIZING THE CITY MANAGER TO ENTER

INTO AND EXECUTE AN AGREEMENT WITH ADP TO PROVIDE PAYROLL SOFTWARE & RELATED SERVICES TO HUMAN RESOURCES DEPARTMENT, IN AN AMOUNT NOT TO EXCEED FORTY-FIVE THOUSAND DOLLARS ($45,000.00), PAYABLE FROM ACCOUNT NO. 13-513646. *Sponsored by C.M.*

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO MAKE PAYMENT TO GREENSPOON MARDER, P.A. FOR LEGAL SERVICES RENDERED TO THE CITY OF OPA-LOCKA IN THE AMOUNT OF THIRTEEN THOUSAND SEVENTEEN DOLLARS AND SEVENTY-NINE CENTS ($13,017.79), PAYABLE FROM ACCOUNT NO. 28-514390. *Sponsored by C.M.*

The above resolutions were read by title by Attorney Norris-Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the consent agenda resolutions.

The motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelly	Yes

A. CITY MANAGER'S REPORT:

In addition to the day to day activities, Manager Finnie reported on the following several items which he had been working on: Old Water Plant, recycling, repair of lights on Ali-baba Avenue still ongoing with an expected completion date on the following week and the unveiling of his Strategic Plan on February 7, 2009.

Vice Mayor Taylor expressed her concerns relating to the beautification efforts at the Old Water Plant and thanked the Public Works Department for their continuous effort with that ongoing project.

Commissioner Johnson rendered her concerns to the City Manager relating to the theft of mail and reporting to the US Postal Inspector for corrective action; maintenance to be included as a part of contracts (i.e. NW 27 Avenue beautification project); and incorporating PULSE project into the CET program.

She further asked for an update on the CET program.

Chief Rodney Ballentine of the Opa-locka Police Department came forward and stated that the CET program is going well reducing crime and the program will be moved to the Garden Apartments.

Commissioner Johnson explained that PULSE has a project called Hot Spot for reporting illegal activities while remaining anonymous and she would like the city to see about incorporating that into the CET program.

She continued by saying she is concerned about city telephones going to voicemail during normal business hours. She further asked for the schedule for the Customer Service training as mentioned in the workshop.

Manager Finnie stated that the Commission gave him directions and on February 7, 2009 he will come back with the action steps and timelines.

Commissioner Tydus expressed her concerns relating to speeding on Jann Avenue and the need for speed bumps.

At the February 7, 2009 meeting, Manager Finnie stated that he would discuss a citywide strategy for speed bumps.

Commissioner Tydus stated that she personally witnessed chickens going through the mail system at the Post Office being delivered to single family addresses and she didn't know whether this is legal.

Commissioner Johnson advised that it is legal to mail live stock through the U.S. Postal System.

Commissioner Tydus suggested that the city look into this matter because it would be counterproductive for the city's efforts in prohibition of chickens.

To address this problem, Manager Finnie stated that he would get with Code Enforcement to see what could be done. Additionally, he would contact the Town of Miami Lakes and the City of Miami Shores to see how their code treats animals from a nuisance standpoint.

As it relates to the Old Water Plant / Transfer Area, Commissioner Tydus said that it is an eyesore, safety hazard and as a city something must be done because it is deplorable for the people who live in that area. Additionally, there are a lot of vagrants again.

Because of that same reason, Manager Finnie stated that the city began the beautification project that resulted in the leak. The city is scheduled to go back out there, clean it up again and put the fence back. Also, he would coordinate another effort with the Police Department but first the city must put the fence back.

Commissioner Tydus thanked the City Manager for the tripod at the entrance of Town Center directing the residents to the 4th floor for utility bill payments.

Commissioner Johnson asked for an update on the Trolley.

Manager Finnie requested that Commissioner Johnson allow him to research because he was not familiar with the Trolley.

Commissioner Johnson asked for an update on the citywide cleaning of the drainage.

Manager Finnie advised that he would discuss the cleaning of the drainage at the meeting on February 7, 2009.

Commissioner Holmes asked, has the city come up with an estimate as to how much water was lost at the Old Water Plant?

Manager Finnie advised that he didn't have the information as of yet but would expect to have it next week.

As suggested at the last meeting, Commissioner Holmes said he would like for the City Manager to find out how much water was wasted during that period of time that the water was leaking because the city has paid Miami-Dade County on a monthly basis for that water. The water paid to Miami-Dade County by it coming through the meter also impacts what the city charged the residents; therefore, he wants to know how much water was wasted for a possible relief to the residents.

Additionally, he suggested that the City Manager have someone look into all of the complaints relating to high water bills.

He further expressed his concerns relating to the requirement of a High School Diploma or GED for certain positions such as maintenance, canal cleaning, etc. and asked that the City Attorney look into bringing something back to take away the High School Diploma or GED requirement out of the administrative rules or Code for these types of positions.

Commissioner Holmes expressed his concerns about the maintenance and cleaning of the debris on the streets throughout the city especially in preparation for the upcoming Street naming Dedication Ceremony in honor of President Barack Obama; prohibiting trucks from driving on Perviz Avenue so that the street won't get messed up; lack of lighting throughout the city; email from a resident regarding the Old Water Plant being deplorable and an eyesore to the community; and suspend issuing parking tickets on Curtiss Drive until the parking situation is addressed.

He further went on to talk about the incident that occurred over the weekend in Liberty City and his efforts to work with Miami Crime Stoppers to raise money for the reward to catch the person(s) responsible.

As it relates to employment, of concern to Mayor Kelley is the process used in notifying individuals not selected for employment; individuals not getting an equal opportunity for positions in maintenance, canal cleaning, etc. and giving preference to Opa-locka residents.

With regards to the Planning and Zoning RFP, he asked has the city had a chance to review the proposals and make a recommendation.

Manager Finnie stated that he had not received the recommendation as of yet.

Mayor Kelley asked, who's handling any items dealing with those types of issues?

Manager Finnie advised that staff would handle the items; however, any unusual zoning modification item would be held until the city can hire a consultant to work with the attorney for the proper land use sign offs.

Mayor Kelley asked, when does he anticipate the Planning and Zoning item to come before the City Commission?

Manager Finnie assumed that it would be coming before his desk shortly.

Over the last few weeks, Mayor Kelley stated there had been a lot of discussion about the water plant relating to the leak and Vice Mayor Taylor's clean up efforts. In terms of the legislative package and the $17,000,000.00 that's kind of unrealistic in his opinion; he would have liked to have seen if that could have been submitted in a broken down figure (Phase I, Phase II). In his mind the first thing needed was a water atlas to be able to know where everything is at.

As mentioned earlier, Manager Finnie advised that the resolution to come before the Commission next month is to hire a consultant to provide the road map or water atlas. The assumption was that there's grant money for reverse osmosis so that was the number used which is not necessarily the money they are going for.

Mayor Kelley advised of some additional grant opportunities with regards to water navigation and he would like staff to look at Ingram Park Lakefront because you can't go through to Wilmington Street because there's not a clear roadway. He suggested that the City Manager submit grant opportunities in the cycle coming up for a connection going through to Wilmington Street until the city can beautify that side.

He directed that the City Manager determine and make plans for the Commission to travel to Tallahassee in February prior to the session to present the city's legislative package.

He informed Commissioner Johnson of a conference in April 2009 on Going Green.

Additionally, he stated that the National League of Cities Conference is in March 2009 and that would allow the Commission to have their discussions in Washington during the conference as oppose to two separate trips. He directed the City Manager to set up those meetings as well.

At the Florida League of Cities meetings, Commissioner Johnson stated that the City Manager, City Clerk and City Attorney from other cities are in attendance.

C. ACCOUNTS PAYABLE:

The City Commission instructed the city to pay its bills.

16. OFFICIAL BOARD REPORTS:

Commissioner Johnson expressed her concern relating to the lack of boards submitting their reports.

After speaking with several board members, Mayor Kelley said that they were awaiting training and he doesn't know who's conducting the training.

Commissioner Johnson stated that the attorney is supposed to be putting some training together.

Vice Mayor Taylor asked whether the boards had training.

Clerk Irby stated that all of the boards received training; however, some of the boards meet on an as needed basis. The Nuisance Abatement Board will have an organizational meeting in March 2009.

17. CITY ATTORNEY'S REPORT:

With respect to the training, Attorney Norris-Weeks requested that she coordinate that Nuisance Abatement Board meeting with the City Clerk since some of it deal with legal issues and it would be a good idea for the attorney to be involved with the training for that particular board.

Commissioner Johnson asked for a report on the Opa-locka Executive Airport as it relates to impact fees.

Attorney Norris-Weeks advised that she would have a memorandum to the Commission before the end of the week; however, there is no legal basis for the county to give the City of Opa-locka fees from the airport. Monies that go into airport coffers from the Federal Government have to be used for airport activities and the county was cited in the past for not doing that in some cases; therefore, this is a real serious issue they are trying to comply with.

Commissioner Johnson expressed her frustration with the airplane traffic and noise from Opa-locka Executive Airport.

Attorney Norris-Weeks advised of the monies available for noise abatement and suggested that the City Manager coordinate with the county. She had a conversation with

Commissioner Jordan about the same issue and she understood from former City Manager Jannie Beverly that is has been an ongoing issue with the city which has come up many times before.

Commissioner Johnson directed the City Attorney and City Manager to get together on this matter and find out what happened to the buffer previously discussed. Although this issue has come up for years they have yet to come up with a solution. She said that it is the same issue with CSX because there's no other cities where the railroad tracks look the way they do in Opa-locka.

Commissioner Holmes directed the City Attorney to draft an ordinance notifying FAA, Miami-Dade County and any other agencies that have anything to do with Opa-locka Airport that the Commission and the citizens of this community do not want any more planes flying over the City of Opa-locka.

As it relates to CSX and the Opa-locka Executive Airport, Vice Mayor Taylor said the City of Opa-locka is complacent and nice in dealing with the county and other agencies and it is now time for the city to be more aggressive and start talking up for this city.

Commissioner Johnson concurred with Vice Mayor Taylor and stated that the City of Opa-locka must tell its own story and fight for the betterment of this community.

Commissioner Tydus noted that one of the cracks in the fight concerning the flights from Opa-locka Airport is that when the records are checked the residents have not complained. The city must get the message out to the residents so that when this happens the phones and/or mail system is flooded. She suggested that the city emphasize this issue in the newsletter and provide the telephone number and address for complaints. The city should get a schedule of flights for Opa-locka Executive Airport.

Manager Finnie stated that the difficulty with Opa-locka Executive Airport is there's no set schedule because these are private planes unlike MIA; however, he can go to Executive Aviation and try to get the flight plan in order to get a number.

Mayor Kelley informed the City Attorney that he was still waiting on a report regarding Section 8 Rental Properties.

18. CITY CLERK'S REPORT:

Clerk Irby reported that she is actively working on the upcoming Census 2010.

Commissioner Johnson directed the City Clerk to start working on the ad for the Street naming Dedication in honor of President Barack Obama.

She asked about the street sign for Susie Young.

Clerk Irby stated that the street sign will be changed; but the problem with the sign is the ordinance because it doesn't reflect a beginning and ending street for both Susie Young and Doretha Parker.

Commissioner Holmes asked for an update on the additional street sign for the Honorable Brian Hooten to be placed on the corner of Codadad Street and Sharazad Boulevard.

Clerk Irby said she would speak to Commissioner Holmes on the sign the following day.

Commissioner Holmes and Mayor Kelley commended the City Clerk and staff for a job well done on the Mayor's State of the City Address.

Mayor Kelley informed the Commission that he received many requests for his speech.

Commissioner Johnson suggested that the Mayor's State of the City Address is aired on You Tube and/or the city's Website.

19. MAYOR/COMMISSION REPORT:

Commissioner Johnson reported that she joined the National Coalition for 100 Black Women; participated in both the Jose Marti Parade and MLK parade; participated in the Liberty City candlelight vigil; is providing High School Diploma training in conjunction with Miami-Dade College on Tuesdays and Thursdays from 6:00p.m. – 9:00p.m.; making educational programs available known to citizens; meeting with legal aid along with a group of citizens from Nile Gardens; committee meeting for President Barack Obama Street naming Dedication at Town Center from 10:00 a.m. – 2:00 p.m.; keynote speaker on Friday, January 30, 2009 for Miami Job Corps Class of 2009; and working diligently to make sure the city progress together as a team.

She suggested that the Commission revisit the workshop for the charter and code revisions and come up with a possible date.

Mayor Kelley stated that his intent is to schedule the workshop on the Code and Charter after the Vision Setting on February 7, 2009.

Commissioner Johnson stated that she would get with the City Attorney the following week to bring back a resolution for Stop the Violence Month in October 2009. She further directed the City Attorney to work on the Hotspot project.

Commissioner Tydus happily announced that she had the privilege of attending the Presidential Inauguration which was quite an historical experience.

Commissioner Holmes commended the IT Department, Shawn Williams, Christina Gordon and the Opa-locka Police Department for doing an excellent job. He reported that he attended and enjoyed the Jose Marti Parade in Hialeah.

He further requested that the commission meetings are aired live on OPA-TV.

Mayor Kelley reported that he is continuing to meet regarding foreclosure challenges in the city; met with other elected officials regarding the budget challenges in Tallahassee but it does appear there will be some funding for infrastructure; has been in contact with Commissioner Moss because he's over the Image Committee for assistance on SR9 as it relates to beautification; State of the City Address; attended the Presidential Inauguration and reached out to the Beacon Council for assistance small businesses in the city.

He continued by saying that he would not be able to attend the committee meeting the following morning because he would be representing the city before the Dade Delegation to present the city's package.

While the city has lobbying in Tallahassee, he suggested that the city look at Washington as well particularly since our new president has made the statement of wanting to help cities and because Opa-locka is a small city it will have to fight twice as hard to get dollars.

Commissioner Holmes provided the residents with information as to what items could be placed in the recycling carts.

20. OFFICIAL BOARD APPOINTMENTS:

Commissioner Johnson asked if there is any provision that would prohibit a city employee from serving on the Charter Review Board.

Attorney Norris-Weeks requested that she be allowed to look into that issue and get back to the Commission.

Commissioner Johnson suggested that the Commission deferred the board application to the next regular meeting pending the response from the City Attorney.

Commissioner Tydus recommended re-appointing Calvin Russell to the Planning Council.

It was moved by Commissioner Tydus, seconded by Commissioner Johnson to re-appoint Calvin Russell to the Planning Council.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

Vice Mayor Taylor re-appointed Rodney Watkins to the Community Relations, Recreation & Activities Advisory Board.

Commissioner Johnson asked for an updated list of the board members.

Mayor Kelley extended an invitation to the Installation for the Miami-Dade Caucus of Local Black Elected Officials on February 9, 2009.

21. ADJOURNMENT:

There being no further persons to come before the City Commission, it was moved by Commissioner Holmes, seconded by Commissioner Johnson to adjourn the meeting at 10:20 p.m.

MAYOR

ATTEST:

CITY CLERK